

Nordheim v. LinkedIn Corp., Slip Copy (2025)



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2025 WL 3145293

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United States District Court, N.D. California.

Odin NORDHEIM, Plaintiff,

v.

[LINKEDIN CORP.](#), Defendant.

Case No. 25-cv-04985-SK

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Signed October 21, 2025

Attorneys and Law Firms

Odin Nordheim, San Francisco, CA, Pro Se.

[Kajsa McLean Minor](#), Shartsis Friese LLP, San Francisco, CA, for Defendant.

ORDER ON MOTION TO DISMISS

Regarding Docket Nos. 11, 27, 30

[SALLIE KIM](#), United States Magistrate Judge

*1 This matter comes before the Court upon consideration of the motion to dismiss filed by Defendant LinkedIn Corporation (“LinkedIn”). Having carefully considered the parties' papers, relevant legal authority, the record in the case, and having had the benefit of oral argument, the Court hereby GRANTS Defendant's motion for the reasons set forth below.

The Court FURTHER ORDERS that Plaintiff's motion to seal is denied. Plaintiff had previously moved to seal the entire case. (Dkt. No. 3.) The Court denied that motion because the Complaint did not actually disclose details of sensitive or confidential information. (Dkt. No. 5.) The Court explained that the Order was without prejudice to Plaintiff moving in the future to seal sensitive or confidential information. (*Id.*) Plaintiff filed another motion to seal contact information that is not already public, unique government

identifiers, such as social security numbers, and his medical diagnoses. (Dkt. No. 27.) However, as the Court already explained, Plaintiff's complaint does not disclose sensitive or confidential information. To the extent Plaintiff was concerned about future disclosures, such concerns are moot because the Court is dismissing this action. The Court thus DENIES the motion to seal. (Dkt. No. 27.)

The Court also SUSTAINS LinkedIn's objections to Plaintiff's sur-reply. (Dkt. Nos. 29, 30.) Pursuant to Northern District Civil Local Rule 7-3(d), “no additional memoranda, papers or letters may be filed without prior Court approval” after a reply is filed unless it is in response to new evidence submitted in a reply brief. *See* N.D. Civ. L.R. 7-3(d). Because Plaintiff is not addressing new evidence, the Court SUSTAINS LinkedIn's objections to the sur-reply.

BACKGROUND

Plaintiff Odin Nordheim filed this action against LinkedIn. He alleges that he is a Danish citizen and professional consultant who actively used LinkedIn and that he lives in the United States. (Dkt. No.1 (Compl.) Plaintiff used LinkedIn to promote a group called “Green Humans”. (*Id.*) In 2021, an individual named Aaron Laks made false and harmful accusations against Plaintiff on LinkedIn. (*Id.*) Plaintiff reported Laks' abuse to LinkedIn but LinkedIn failed to investigate or intervene. (*Id.*) Instead, Laks removed Plaintiff from his own group and LinkedIn suspended Plaintiff's account without cause. (*Id.*) Plaintiff had to rely on outside mediation to recover his account but, by that time, Plaintiff's career and reputation had already been destroyed by Laks. (*Id.*) Plaintiff sought help and had his account reinstated in August 2022. (*Id.*)

Based on these allegations, Plaintiff brings the claims against LinkedIn under the Fair Credit Reporting Act, the Computer Fraud and Abuse Act, “**Section 230** Misapplication” under the Communications Decency Act,¹ Title VII of the Civil Rights Act of 1964, the Americans with Disabilities Act, violation of due process under the fifth and fourteenth amendments, and a violation of his privacy rights. (*Id.*)

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ANALYSIS

A. Applicable Legal Standard on Motion to Dismiss.

*2 A motion to dismiss is proper under [Federal Rule of Civil Procedure 12\(b\)\(6\)](#) where the pleadings fail to state a claim upon which relief can be granted. On a motion to dismiss under [Rule 12\(b\)\(6\)](#), the Court construes the allegations in the complaint in the light most favorable to the non-moving party and takes as true all material allegations in the complaint. *Sanders v. Kennedy*, 794 F.2d 478, 481 (9th Cir. 1986). Even under the liberal pleading standard of Rule 8(a)(2), “a plaintiff’s obligation to provide the ‘grounds’ of his ‘entitle[ment] to relief’ requires more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do.” *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007) (citing *Papasan v. Allain*, 478 U.S. 265, 286 (1986)). Rather, a plaintiff must instead allege “enough facts to state a claim to relief that is plausible on its face.” *Id.* at 570.

“The plausibility standard is not akin to a probability requirement, but it asks for more than a sheer possibility that a defendant has acted unlawfully. When a complaint pleads facts that are merely consistent with a defendant’s liability, it stops short of the line between possibility and plausibility of entitlement to relief.” *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Twombly*, 550 U.S. at 557) (internal quotation marks omitted). If the allegations are insufficient to state a claim, a court should grant leave to amend, unless amendment would be futile. *See, e.g. Reddy v. Litton Indus., Inc.*, 912 F.2d 291, 296 (9th Cir. 1990); *Cook, Perkiss & Lieche, Inc. v. N. Cal. Collection Serv., Inc.*, 911 F.2d 242, 246-47 (9th Cir. 1990).

As a general rule, “a district court may not consider material beyond the pleadings in ruling on a [Rule 12\(b\)\(6\)](#) motion.” *Branch v. Tunnell*, 14 F.3d 449, 453 (9th Cir. 1994), *overruled on other grounds*, *Galbraith v. Cnty. of Santa Clara*, 307 F.3d 1119 (9th Cir. 2002) (citation omitted). However, documents subject to judicial notice, such as matters of public record, may be considered on a motion to dismiss. *See Harris v. Cnty. of Orange*, 682 F.3d 1126, 1132 (9th Cir. 2011). In doing so, the Court does not convert a motion to dismiss to one for summary judgment. *See Mack v. S. Bay Beer Distrib.*, 798 F.2d 1279, 1282 (9th Cir. 1986), *overruled on other grounds*

by *Astoria Fed. Sav. & Loan Ass’n v. Solimino*, 501 U.S. 104 (1991). “The court need not ... accept as true allegations that contradict matters properly subject to judicial notice” *Spewell v. Golden State Warriors*, 266 F.3d 979, 988 (9th Cir. 2001).

B. Defendant’s Motion to Dismiss.

1. Communications Decency Act.

Defendant argues that all of Plaintiff’s claims are barred by [Section 230](#) of the Communications Decency Act (the “CDA”), 47 U.S.C. [§ 230\(c\)\(1\)](#). [Section 230\(c\)\(1\)](#) provides: “No provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider.” 47 U.S.C.A. [§ 230\(c\)\(1\)](#).

[Section 230](#) of the CDA “immunizes providers of interactive computer services against liability arising from content created by third parties.” *Fair Hous. Council of San Fernando Valley v. Roommates.com, LLC*, 521 F.3d 1157, 1162 (9th Cir. 2008) (*en banc*). “Any activity that can be boiled down to deciding whether to exclude material that third parties seek to post online is perforce immune under [section 230](#).” *Id.* at 1170-71. Immunity under [Section 230](#) “protect[s] websites not merely from ultimate liability, but [also] from having to fight costly and protracted legal battles.” *Id.* at 1175. “[C]ourts have treated [§ 230\(c\)](#) immunity as quite robust, adopting a relatively expansive definition of ‘interactive computer service’ and a relatively restrictive definition of ‘information content provider.’” *Carafano v. Metrosplash*, 339 F.3d 1119, 1123 (9th Cir. 2003); *Jane Doe No. 1 v. Backpage.com, LLC*, 817 F.3d 12, 18 (1st Cir. 2016) (“There has been near-universal agreement that [section 230](#) should not be construed grudgingly.”). “[C]lose cases ... must be resolved in favor of immunity.” *Roommates.Com*, 521 F.3d at 1174. “When a plaintiff cannot allege enough facts to overcome [Section 230](#) immunity, a plaintiff’s claims should be dismissed.” *See Dyroff v. Ultimate Software Grp., Inc.*, 934 F.3d 1093, 1097 (9th Cir. 2019). “[Section 230](#) immunity extends to causes of action under both state and federal law.” *Fed. Agency of News LLC v. Facebook, Inc.*, 432 F. Supp. 3d 1107, 1116 (N.D. Cal. 2020) (citing *Roommates*, 521 F.3d at 1164, 1169 n. 24).

*3 Subsection (c)(1) of the CDA protects from liability (1) a provider or user of an interactive computer service (2)

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whom a plaintiff seeks to treat as a publisher or speaker (3) of information provided by another information content provider. *Barnes v. Yahoo!, Inc.*, 570 F.3d 1096, 1100-01 (9th Cir. 2009).

i. Interactive Computer Service.

An “interactive computer service” is defined under the CDA as “any information service, system, or access software provider that provides or enables computer access by multiple users to a computer server, including specifically a service or system that provides access to the Internet and such systems operated or services offered by libraries or educational institutions.” 47 U.S.C. § 230(f)(2). As another court found, “[t]here is no dispute that LinkedIn qualifies as an interactive computer service under the CDA”. *Errato v. Am. Express Co.*, 2022 WL 17737285, at *6 (D. Conn. Dec. 16, 2022); see also *Brooks v. Thomson Reuters Corp.*, 2021 WL 3621837, at *12 (N.D. Cal. Aug. 16, 2021) (listing LinkedIn as one of the examples of an interactive computer service: “the CDA immunizes providers of an ‘interactive computer service’ (i.e. Facebook, Twitter, LinkedIn, etc.)”). The Court finds that LinkedIn qualifies as an interactive computer service.

ii. Treating Defendants as a Publisher or Speaker.

“Subsection (c)(1) ... shields from liability all publication decisions, whether to edit, to remove, or to post, with respect to content generated entirely by third parties.” *Barnes*, 570 F.3d at 1105. A claim treats a defendant as a publisher if it “involves reviewing, editing, and deciding whether to publish or to withdraw from publication third-party content.” *Barnes v. Yahoo!, Inc.*, 570 F.3d 1096, 1102 (9th Cir. 2009) (citing *Roommates*, 521 F.3d at 1170-71 (“[A]ny activity that can be boiled down to deciding whether to exclude material that third parties seek to post online is perforce immune under section 230.”) and *Zeran v. Amer. Online, Inc.*, 129 F.3d 327, 330 (4th Cir. 1997)) (listing “deciding whether to publish, withdraw, postpone or alter content” as examples of “a publisher’s traditional editorial functions”). Courts have broadly interpreted what it means to be acting as a publisher under the CDA. *Jane Doe No. 1 v. Backpage.com, LLC*, 817 F.3d 12, 19 (1st Cir. 2016) (“The broad construction accorded to section 230 as a whole has resulted in a capacious

conception of what it means to treat a website operator as the publisher or speaker of information provided by a third party.”).

According to Plaintiff, an individual, Aaron Laks, made harmful and false accusation against Plaintiff on LinkedIn. Plaintiff reported Laks’ accusations to LinkedIn but LinkedIn failed to intervene or investigate and, instead, suspended Plaintiff’s account without cause. (Dkt. No.1 (Compl.).) Plaintiff also alleges that “LinkedIn still retains and displays defamatory content” and that LinkedIn banned Plaintiff “due to false reports”. (*Id.*) He claims all stem from his alleged harm that he incurred as a result. Plaintiff thus seeks to hold Defendant liable as a publisher for failing to remove content posted by a third-party and for temporarily barring Plaintiff from accessing or controlling his own content. Therefore, the Court finds that Plaintiff treats Defendants as a publisher in his claims.

iii. Information Provided by Another Information Content Provider.

*4 The third and final requirement under Section 230 is that the claims concern information provided by another information content provider. *Barnes*, 570 F.3d at 1101. All of Plaintiff’s claims easily satisfy this requirement because the content he is concerned with was either created by Laks or by Plaintiff, not LinkedIn. See *Riggs v. MySpace, Inc.*, 444 F. App’x 986, 987 (9th Cir. 2011) (defendant’s decision to delete plaintiff’s profile from its social networking site was precluded by section 230(c)(1) of the CDA) (citing *Roommates.Com*, 521 F.3d at 1170-71) (“[A]ny activity that can be boiled down to deciding whether to exclude material that third parties seek to post online is perforce immune under section 230.”); see also *Ebeid v. Facebook, Inc.*, 2019 WL 2059662, at *5 (N.D. Cal. May 9, 2019) (rejected argument that posts were not “information provided by another information content provider” because plaintiff himself – not some other third-party – provided the information and applied (c)(1) immunity to Facebook’s decision to remove plaintiff’s posts); *Lancaster*, 2016 WL 3648608, at * 3 (applied (c)(1) immunity to YouTube’s decision to remove plaintiff’s videos from its site). As the court explained in *Ebeid*, “information provided by another information content provider” applies to any content that is “created entirely by individuals or entities

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other than the interactive computer service provider.” *Ebeid*, 2019 WL 2059662, at *4. Although Plaintiff complains about the actions LinkedIn took or failed to take with respect to the content created by Laks, or by temporarily preventing Plaintiff from responding to that content, he does not allege any content created by LinkedIn. The Court thus finds that all of Plaintiff’s claims are barred by **Section 230(c)(1)**. Accordingly, the Court GRANTS LinkedIn’s motion to dismiss. Moreover, because leave to amend would be futile, the Court dismisses Plaintiff’s claims with prejudice. See *Sikhs for Just., Inc. v. Facebook, Inc.*, 697 F. App’x 526 (9th Cir. 2017) (affirming district court’s dismissal with prejudice because leave to amend would have been futile where plaintiff’s claim was barred by the CDA); see also *Doe v. Grindr Inc.*, 709 F. Supp. 3d 1047, 1058 (C.D. Cal. 2023) (dismissing all plaintiff’s claims with prejudice because they were barred by **Section 230** of the CDA).

2. Cancelling Plaintiff’s LinkedIn Account.

The only claims that potentially could be considered based on LinkedIn’s conduct, as opposed to failing to act on another’s actions, are Plaintiff’s claims under the Computer Fraud and Abuse Act (“CFAA”) and violation of due process for LinkedIn cancelling Plaintiff’s account. The statute of limitations for both of these claims is two-years. See *Alameda*

Books, Inc. v. City of Los Angeles, 631 F.3d 1031, 1041 (9th Cir. 2011) (statute of limitations for due process claims is taken from the forum state’s statute of limitations for personal injury actions which is two years) (citing *Cal. Civ. Proc. Code* § 335.1); 18 U.S.C. § 1030(g) (setting two-year statute of limitations for claims under CFAA). Plaintiff makes clear in his Complaint that LinkedIn allegedly cancelled his account and Plaintiff was able to have it reinstated before November 2022. (Dkt. No. (Compl.).) Plaintiff did not file this action until June 12, 2025, more than two years later. Therefore, even to the extent these claims are not barred by **Section 230** of the CDA, they are time-barred.

CONCLUSION

For the foregoing reasons, the Court GRANTS Defendant’s motion to dismiss and DISMISSES Plaintiff’s claims with prejudice. The Court will issue a separate judgment. The Clerk shall close the file.

IT IS SO ORDERED.

All Citations

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Footnotes

- 1 Plaintiff also purports to bring a claim under “GDPR (foreign)”. (Dkt. No. 1 (Compl.).) GDPR appears to be the General Data Protection Regulation implemented by the European Union to regulate data privacy protections in all member states. See *In re Alphabet, Inc. Sec. Litig.*, 1 F.4th 687, 695 (9th Cir. 2021). It is not clear how Plaintiff, who is a resident within the United States, could bring a claim against an American company under the GDPR. Moreover, Plaintiff also alleges he brought a lawsuit in Denmark under the GDPR. Therefore, Court will not address this claim.